

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #13	CCRB Case #: 201603113	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 04/09/2016 12:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/9/2017	Precinct: 07
Date/Time CV Reported Tue, 04/12/2016 11:33 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/12/2016 11:33 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Myles Lennard	02804	954057	PSA 4
2. POF Alexis Huertas	26323	945946	PSA 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jensen Dayle	00857	931625	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A . POM Myles Lennard	Force: PO Myles Lennard fired his gun.	A . Exonerated
B . POM Myles Lennard	Abuse: PO Myles Lennard damaged § 87(2)(b)'s property.	B . Exonerated
C . POM Myles Lennard	Abuse: PO Myles Lennard refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . POF Alexis Huertas	Abuse: PO Alexis Huertas refused to provide her name and shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

On April 12, 2016, § 87(2)(b) filed this complaint over the phone with the CCRB.

On April 9, 2016, at approximately 12:30 a.m., PO Myles Lennard and PO Alexis Huertas, both assigned to PSA4, responded to a call of a dispute involving a dog on the § 87(2)(b) in Manhattan. The officers first spoke with § 87(2)(b) in apartment § 87(2)(b) who reported that a woman who lives across the hall in apartment § 87(2)(b) had threatened her with a dog earlier that day. According to § 87(2)(b) the dog had barked and growled at § 87(2)(b) and § 87(2)(b) had said, “Sick her, sick her.” She also stated that she had been attacked by the same dog earlier that day, when it ran at her and jumped on her chest. The dog in question was a medium sized black pit-bull belonging to § 87(2)(b) who is a friend of § 87(2)(b) and was staying at the apartment for several nights with his girlfriend, § 87(2)(b).

PO Lennard and PO Huertas then crossed the hall to speak with § 87(2)(b) about the incident. They knocked on the door, and received no response. After approximately one minute, the door opened, with § 87(2)(b) and § 87(2)(b) standing on the other side. The dog ran out of the apartment and approached the officers. Shortly thereafter, PO Lennard discharged on shot from his firearm at the dog, killing it (**Allegations A and B**). § 87(2)(b) and § 87(2)(b) were upset, and both asked PO Lennard and PO Huertas for their names and shield numbers. Neither officer responded (**Allegations C and D**). Many additional officers responded, including PO Dayle Jensen, of PSA4.

After the officers established a crime scene, § 87(2)(b) was arrested by PO Dayle, and charged with § 87(2)(b) for the incident § 87(2)(b) had described with the dog earlier on April 8, 2016.

Mediation, Civil and Criminal Histories

- Due to the arrest of § 87(2)(b) and the allegations regarding the shooting of the dog, this case was not eligible for mediation.
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
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§ 87(2)(b)
- A request for any related Notice of Claim was sent to the Comptroller’s Office on August 8, 2016. As of the date of this report, no response has been received (Board Review 03).

Civilian and Officer CCRB Histories

- PO Lennard has been the subject of four previous CCRB allegations across three separate complaints during his three year tenure with the NYPD. Two of these were complaints of excessive force, one for physical force and one for use of OC Spray, which were closed as complainant unavailable and exonerated, respectively. There have been no substantiated allegations made against PO Lennard (Board Review 04).

- PO Huertas has been the subject of one previous CCRB allegation during her eight year tenure with the NYPD. It was a stop allegation, which was closed as unsubstantiated (Board Review 05).
- § 87(2)(b) has filed one previous complaint with the CCRB: § 87(2)(b)
- This is the first CCRB case involving § 87(2)(b) or § 87(2)(b) (Board Review 07).

Potential Issues

- A witness to the incident was unable to be identified by the investigation. § 87(2)(b) and § 87(2)(b) both described a man, whose name they did not know, exiting apartment § 87(2)(b) after the shooting and requesting the names and shield numbers of PO Lennard and PO Huertas. On May 26, 2016, public records searches through Clear and Lexis Nexis provided two phone numbers related to the address; however, both of these were found to be inoperable when called the same day. Two visits were made to the apartment, on April 21, 2016, and May 3, 2016. There was no answer at the apartment when the undersigned investigator knocked on the door, and letters were left on each occasion requesting that the occupant contact the CCRB (Board Review 17). As of the date of this report, there has been no response to these letters.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A – Force: PO Myles Lennard fired his gun.

Allegation B – Abuse of Authority: PO Myles Lennard damaged § 87(2)(b)'s property.

It is undisputed that PO Lennard shot § 87(2)(b)'s dog after it went into the hallway and approached the officers when the residents of apartment § 87(2)(b) opened the door. It is also undisputed that PO Lennard and PO Huertas were at that apartment to look into complaints that the dog had recently attacked, and been used to threaten § 87(2)(b) § 87(2)(g)

§ 87(2)(b) stated that the dog barked, but did not growl when officers knocked. The dog exited the apartment when they opened the door, but it was not aggressive or vicious, did not jump, bark or growl, and did not attack the officers. § 87(2)(b) described the dog's actions as playful. He stated that there was no conversation before the dog was shot (Board Review 08). § 87(2)(b) largely corroborated his statements (Board Review 09).

§ 87(2)(b) described the dog exiting the apartment as § 87(2)(b) had. She, however, stated that she also exited her doorway and attempted to grab the dog before she was pushed back by PO Lennard. § 87(2)(b) also denied that the dog had attacked § 87(2)(b) earlier that day, and denied threatening her with the dog (Board Review 10).

§ 87(2)(b) stated that she had been attacked by the dog and threatened by it on several occasions, all of which she told to PO Lennard and PO Huertas before they went to § 87(2)(b) apartment. She watched through her peep hole as the officers knocked on § 87(2)(b) door. She could see the doorway, and so was able to testify that neither § 87(2)(b) nor anyone else exited the doorway before the dog was shot. She was unable to see whether the dog attacked PO Lennard, but did hear it bark and growl before being shot. She did not hear anyone speak before the dog was shot (Board Review 11).

§ 87(2)(b) a neighbor and friend of § 87(2)(b) only heard the incident from down the hall. She stated that she heard the dog bark after the door was open, and heard someone say, “Please don’t shoot,” before the shot was fired (Board Review 12).

PO Lennard stated that § 87(2)(b) reported numerous threats from a vicious dog in § 87(2)(b) apartment to him and PO Huertas before they went there. PO Lennard, who described himself as a dog lover with a lot of familiarity with dogs in his private life, has no official training from the NYPD in how to deal with vicious animals. When they went to § 87(2)(b) apartment to try and mediate the dispute, the residents did not immediately answer the door. When the door did open, the dog immediately ran out and viciously attacked PO Lennard, jumping towards his face and neck area in what appeared to be an attempt to bite him.

Both PO Lennard and PO Huertas repeatedly shouted for the residents to restrain the dog, but none of them responded or attempted to do so. PO Lennard repelled one attack by pushing the dog off. After that, the dog jumped and attacked again, and PO Lennard had to move back against a wall. He drew his firearm and held it, in one hand, up at the level of his head pointing down towards the dog, which was directly in front of him jumping up towards his face. He fired one round, striking the dog. PO Lennard explained that he did not feel he was able to access his OC spray or asp, as they were on the left side of his belt and he was using his left arm to fend off the dog. Furthermore, he did not believe he would have had time to use them, especially given the tight quarters of the hallway he was in. PO Lennard felt, based on his knowledge of dogs, that if the pitbull had been able to reach his face or neck it could have bit him, causing serious physical injury (Board Review 13).

PO Lennard’s testimony is largely corroborated by PO Huertas (Board Review 14), who gave the same accounts of the dog’s actions and aggression. The only significant difference between PO Huertas’ statement and PO Lennard’s is that she stated it took § 87(2)(b) a longer time to answer the door. The police documentation prepared for the incident is consistent with the officers’ testimony (Board Review 15).

§ 87(2)(g)

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§ 87(2)(g)

Under the provisions of Patrol Guide Procedure 203-12, which at the time of the incident described an officer’s authority to use deadly physical force, officers should not shoot a dog unless it is to prevent physical injury and there is no other reasonable means to eliminate the threat (Board Review 16).

§ 87(2)(g)
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[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g)
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[Redacted]
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§ 87(2)(g)
[Redacted]
[Redacted] Therefore, it is recommended that *allegations A and B* be *exonerated*.

Allegation C – Abuse of Authority: PO Myles Lennard refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)

Allegation D – Abuse of Authority: PO Alexis Huertas refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that she asked PO Lennard for his shield number shortly after the shooting. § 87(2)(b) stated that her and other people in the apartment requested this information from both PO Lennard and PO Huertas, and § 87(2)(b) stated that it was § 87(2)(b) alone that requested the information.

Both § 87(2)(b) and § 87(2)(b) were not in the hallway at the time, and stated that they did not listen closely to what was going on after hearing the shot.

Both PO Lennard and PO Huertas denied that anyone asked them for their names or shield numbers.

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted] it is recommended that *allegations C and D* be closed as *unsubstantiated*.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date